

Court No. - 21

Case :- WRIT - C No. - 1390 of 2023

Petitioner :- Aaman

Respondent :- State Of U P And Another

Counsel for Petitioner :- Mohd Faiz, Vijay Tripathi

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Shri Mukesh Kumar Singh, learned counsel for respondent-Electricity Department prays for and is granted time to obtain instruction.

List as fresh on 24.1.2023.

Order Date :- 16.1.2023

D. Tamang

(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Sri M.K. Singh seeks time to complete his instructions, as according to the petitioner, the impugned recovery is not preceded by any final assessment order.

List as fresh on 31.1.2023.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 24.1.2023

Jaideep/-

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The impugned recovery relating to electricity dues in a case of theft of electricity has been challenged on the ground that there is no final order of assessment in existence.

Sri M.K. Singh, learned counsel for the respondent Electricity Department states that the impugned recovery has been withdrawn and an order will be passed after affording opportunity of filing objection to the petitioner.

Having regard to the aforesaid statement, we dispose of the instant petition by providing that the respondent shall be at liberty to proceed afresh strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 31.1.2023

Jaideep/-